

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

October 14, 2019

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Ken Esquibel, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Absent: Bryan Cook. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. Luna moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on September 23, 2019. Motion (per Consent Agenda) carried.

No action was taken on the vouchers as presented. Upon inquiry, Michael O'Donnell, City Attorney, advised the approval process for vouchers is currently being considered through a city code amendment which is outlined in the affiliated agenda item #9 on the agenda. Mr. O'Donnell reported that voucher reports for the following City Council meetings: September 23rd, October 14th, October 28th, and November 12th, will be approved as to “accuracy only” at the November 12, 2019 meeting of the governing body. Discussion included approval process and understanding that approval in the current format is inconsequential.

ORDINANCE – 3rd READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from MUB Mixed-Use Business Emphasis to NR-3 Neighborhood Residential – High Density for Lots 1-9, Block 1, North Gate Village, Cheyenne, Wyoming (located at the northwest corner of the intersection of Yellowstone Road and Prairie Hills Drive). Reporting for Public Services Committee, Dr. Rinne moved to approve on third and final reading, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body present. (#4288)

ORDINANCE – 3rd READING – Vacating all of that 15' alley right of way within Block 13, Arp Addition, Fifth Filing, City of Cheyenne, Laramie County, Wyoming, (located north of and adjacent to Leisher Road, east of Cribbon Avenue). Dr. Rinne moved to approve on third and final reading, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body present. (#4289)

ORDINANCE – 2nd READING – Amending Chapter 2.04, Mayor and City Council, within Title 2, Administration and Personnel, and Chapter 3.04, Fiscal Provisions Generally, within Title 3, Revenue and Finance, of the Municipal Code of the City of Cheyenne, Wyoming. Michael O'Donnell, City Attorney, advised the proposed amendment involves 2 sections of city code and explained in Chapter 2.04 the amendment proposes to reduce from \$35,000.00 to \$25,000.00 the authority of the executive branch through the Mayor to enter into contracts without governing body approval. Mr. O'Donnell advised the amendment in Chapter 3.04 is to outline the approval process of the voucher report which will be to approve as to accuracy only. He further explained contracts currently over \$35,000.00 are required to come before the governing body for approval prior to being included on a voucher report and advised all other expenditures on the report have previously been approved. Robin Lockman, City Treasurer, provided information relating to the reduction from \$35,000.00 to \$25,000.00 requiring governing body approval. Ms. Lockman advised it currently takes approximately 4-6 hours of staff time for the Purchasing Manager to prepare an agenda item for governing body approval and would also impose a burden for multiple city department staff members relating to additional work that would be required. She noted additional expenses related to the proposed amendment which includes bid advertising and the extension of the time it would require to obtain governing body approval. Ms. Lockman confirmed the cities of Rock Springs, Laramie, Sheridan and Gillette currently follow the State Statute threshold of \$35,000.00. Discussion included inflation rate adjustments and the bidding process in relation to the current purchasing policy. Reporting for Finance Committee, Mr. White moved to approve on second reading, seconded by Mr. Luna. Mr. White advised at the Finance Committee the recommendation was to amend by substitute dated 10-3-2019, however, since then a clerical error was corrected. Mr. White moved to amend by substitute dated 10-10-2019, seconded by Mr. Shanor. Motion to amend carried. Voting “yes” – all members of the governing body present with the exception of Mayor Orr and Mr. Laybourn voting “no”. Further comments were made regarding the ability of a Department Head actively lobbying for or against proposed legislation, inflation rates and growth, current bidding process and dollar amount threshold relating to governing body approval. Main motion as amended carried. Voting “yes” – all members of the governing body present with the exception of Mayor Orr and Mr. Laybourn voting “no”.

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to sign a Final Plat for North Gate Village, 2nd Filing, a Replat of Lots 7-9, Block 1, North Gate Village, Cheyenne, Laramie County, Wyoming (located northwest of the intersection of Yellowstone Road and Prairie Hills Drive). Motion (per Consent Agenda) carried. (#6019)

[CA] Professional Services Agreement between the City of Cheyenne and Inberg-Miller Engineers, Cheyenne, for engineering services for design of the 2020 Pavement Management Project (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$81,600.00). (#7091)

[CA] Grant Agreement between the City of Cheyenne, Transit Division, and the Wyoming Department of Health, Aging Division, to provide support services to persons 60 years or older under the Title III-B Program Grant for Fiscal Year 2020. Motion (per Consent Agenda) carried (revenue to the city). (#7092)

[CA] Purchase and Sale Agreement between John J. LaFond and the City of Cheyenne for the purchase of real property located at 3425 Christensen Road, in the City of Cheyenne, Laramie County, Wyoming, for the appraised value of \$455,000.00 (Specific Purpose Sales Tax) – referred to Finance Committee.

[CA] Spectrum Enterprise Service Agreement between the City of Cheyenne and Charter Communications Operating, LLC – referred to Finance Committee.

[CA] Grant Agreement between the City of Cheyenne, Police Department, and Wyoming Association of Sheriffs and Chiefs of Police-Wyoming Department of Transportation-Highway Safety Grants Program for selective traffic enforcement grant – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7026 between the City of Cheyenne and Simon Contractors, Cheyenne, for the 2019/2020 Miscellaneous Street Repair Project (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$573,892.25). (#7026)

[CA] Contract Modification #1 to Contract #6963 between the City of Cheyenne and AVI, P.C., Cheyenne, for engineering design and construction management services for the Allison Road and Cribbon Avenue Street Improvements Project to change the Time of Performance (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #S-4-20 for a contract between the City of Cheyenne and S & S Builders, LLC, Cheyenne, for the Greenway Construction - Powderhouse Segment Project (6th Penny Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$319,624.50). (#7093)

[CA] Consideration to purchase time clocks from Paycom, Oklahoma City, Oklahoma for the City's payroll and timekeeping software program (Fleet Maintenance, Solid Waste and 1% Sales Tax Funding). Motion (per Consent Agenda) carried (in an amount not to exceed \$40,350.00).

[CA] Consideration of Bid Modification #1 to Purchase Order #18-112666, Bid #E-25-18 between the City of Cheyenne, and Floyd's Truck Center, Inc., Cheyenne (Solid Waste Fund) – referred to Finance Committee.

[CA] Request for approval for winery permit holder GrapesNwine, LLC d/b/a Vintages, 309 North American Road, Units 11 and 12, Cheyenne, Wyoming, to sell other wines obtained from the Wyoming Liquor Division for on-premise consumption pursuant to Wyo. Statute §12-4-112 (b) (ii) – referred to Finance Committee.

Appointment of Thomas D. Cobb as City Engineer for the City of Cheyenne. Mr. Roybal moved to approve, seconded by Dr. Rinne. Mr. Case offered supporting comments of the proposed appointment. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mayor Orr who did not vote (mayoral appointment).

Appointments of Miles Henderson and Jason Bogstie to the Public Transit Advisory Board; Suzanne Meisner-Esquibel to the Housing and Community Development Advisory Council; Lori Schoene to the Cheyenne Housing Authority Board; and Phillip Regeski to the Planning Commission. Mr. White moved to approve, seconded by Mr. Roybal. Mr. Esquibel declared a conflict of interest as his wife is a proposed appointee to the Housing and Community Development Advisory Council and vacated Council Chambers during discussion and vote. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mayor Orr who did not vote (mayoral appointment), Mr. Esquibel declaring a conflict of interest and Dr. Rinne voting “no”.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:23 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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